



POLICE DEPARTMENT

February 25, 2019

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In the Matter of Charges and Specifications :

- against - :

Police Officer Woody Williams :

Tax Registry No. 937743 :

Police Service Area 2 :

Case No.

2018-18569

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable David S. Weisel
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

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Department Advocate's Office
One Police Plaza, 4th Floor
New York, NY 10038

For the Respondent:

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To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Woody Williams, while assigned to the 60th Precinct, on or about December 23, 2017, during an official Department interview, wrongfully made incomplete, inaccurate, or misleading statements about an incident that occurred on or about December 22, 2017 or about his conversation with other Members of the Service about said incident.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS

P.G. 206-13, Page 2, Paragraph 12 – INTERROGATION OF
MEMBERS OF THE SERVICE
DISCIPLINARY MATTERS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before the Court on September 26, October 3, October 16, and December 12, 2018. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Police Officers Robert Houston, Edmond Cetto, Edward Fastaia and Endri Domi, and Lieutenant Richard Tully as witnesses. Respondent called Inspector William Taylor and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, the Court finds Respondent *Guilty*.

FINDINGS AND ANALYSIS

Introduction

The following is a summary of the general facts in this case. On the evening of Friday, December 22, 2017, Respondent and Police Officer Robert Houston, assigned to the 60 Precinct, were working a fixed foot post at the corner of Mermaid Avenue and West 24th

Street in the Coney Island area of Brooklyn. At a certain point, Respondent and Houston were attempting to keep separate two groups of youths that were verbally accosting each other. Some punches might have been thrown as well. Respondent called a 10-85 over the radio for more units to respond to the scene.

According to Houston, an older woman he knew from patrolling the area approached him and told him that one of the youths was wanted by the police. Houston looked at the subject and thought he had arrested him in the past. When Houston approached him, the youth fled on foot up 24th Street, toward Neptune Avenue. Houston pursued the youth on foot and transmitted details over the radio. He caught up to him before the next intersection and took him into custody.

It is undisputed that Respondent remained at the corner of 24th and Neptune. The commanding officer of the 60 Precinct ordered an investigation of why Respondent did not follow Houston in the pursuit of the subject. As a result, Respondent spoke with union delegates from his precinct and was officially interviewed by the Patrol Borough Brooklyn South Investigation Unit (BSIU) on December 23, 2017.

It is Respondent's answers at the official Department interview that led to the charges and specifications here. The Department alleges that Respondent gave incomplete, inaccurate or misleading answers in the interview when he stated he did not know Houston went off in pursuit of any individual. The Department further alleges that Respondent was incomplete, inaccurate or misleading when he indicated he did not recall the entirety of his conversation with his union delegates at the scene. According to the delegates, Respondent told them he did not run because it was unnecessary.

Facts

POLICE OFFICER ROBERT HOUSTON had been a police officer for about four years, approximately two with the New York City Police Department and approximately two in suburban Cleveland. He was assigned to the 60 Precinct. On December 22, 2017, around 2100 hours, Houston was assigned with Respondent to a fixed foot post at the corner of West 24th Street and Mermaid Avenue. They had worked this post together before. In fact, those were the only times that Houston had worked with Respondent. The post was set up because there had been several shootings there in the past. It was a little less than a mile from the stationhouse (Tr. 82-83, 104-05).

Houston testified that there already was a group of youths at the corner when a rival group of 15 to 20 teenagers from another housing complex approached. At that time, an older woman, whom he knew from the neighborhood, leaned into Houston and pointed out a male from one of the groups who she said was wanted. She also identified this subject by a nickname, which Houston recognized as someone that he had arrested for a weapons offense a month or two prior. Houston conceded that Respondent was not "directly next to" him when the woman gave this information (Tr. 83-84, 91-94, 106-07).

Houston testified that after the woman gave him the information, the two groups, which now constituted at least 30 people, started yelling and throwing punches at each other. Respondent called over the radio for additional units and both officers tried to break up the fight. Some other police units arrived less than 30 seconds later. The groups began separating and the fight "started to die down a little bit," although the crowds remained (Tr. 85-86, 88, 93-95, 98-100, 105-06).¹

¹ Houston testified on direct examination that the other units had arrived before the pursuit. On cross, he was asked whether the pursuit began while the groups were still "throwing punches amongst themselves."

Houston testified that he approached the subject identified by the woman, telling him, "[C]ome over here." The subject first ignored Houston, and then after no more than 10 to 15 seconds, ran off. Houston chased him, north on West 24th Street toward Neptune Avenue. Houston also transmitted details of the pursuit over the radio but had not specifically told Respondent that he was approaching or chasing a suspect. He did not call a 10-13 or 10-85 asking for additional units. The other units already on the scene, including a Housing unit and another 60 Precinct vehicle, joined in the chase (Tr. 85-89, 98-99, 105-07).

The subject was apprehended after about a minute, before he even reached Neptune. Respondent was not at the location of the apprehension and Houston had not seen him during the pursuit. Houston returned with the subject to the stationhouse for arrest processing, although he turned out to be a different person than Houston and the older woman had conceived (Tr. 89-90, 98-101).

Houston's memo book indicated that supervisors inspected the post three times within four hours during the tour in question (Tr. 96-97).

POLICE OFFICER EDMOND CETTO was a Police Benevolent Association delegate for the 60 Precinct's third platoon.² Police Officer Edward Fastaia was one of his co-delegates (Tr. 116, 118-19).

Cetto testified that on December 22, 2017, around 2100 hours, after a call for additional units, he responded to Neptune Avenue between West 24th and 25th Streets.

Houston answered that "the group had died down a little bit and they were kind of starting to disperse a little bit." Counsel then asked, "Had any other officers arrived at the scene or were they just arriving at the scene?" Houston began to answer, "They -" but counsel interrupted, "If you know or remember, I'm sorry." Houston answered, "I don't remember. I don't remember."

² The union still was called the Patrolmen's Benevolent Association at the time of these events.

There he saw Houston and other units with an apprehended perpetrator. But Cetto did not see Houston's partner, Respondent. Nor did Cetto see any disorderly groups (Tr. 119-21, 128-29).

Cetto testified that he and Fastaia walked to the corner of West 24th and Mermaid "[t]o see where Officer Williams was." Respondent was there and the officers, with Fastaia doing "most of the talking," asked what happened. Respondent answered that two groups had been fighting, and while he told Houston not to run, he engaged in a chase anyway. When Fastaia told Respondent "he's gotta stay with his partner," Respondent answered, in sum and substance, "that he had enough time to know when and where he's supposed to run and not run" (Tr. 121-25).

Cetto agreed that the officers were asking Respondent these questions solely in their capacity as union representative. It was not part of any investigation or done at the behest of a supervisor (Tr. 125-26, 128).

POLICE OFFICER EDWARD FASTAIA testified that he also was a PBA delegate for the 60 Precinct. On December 22, 2017, around 2100 hours, Fastaia responded to the vicinity of West 24th Street and Mermaid Avenue in response to a transmission that a member of the service was chasing someone. Fastaia arrived "more towards" the corner of Neptune Avenue to find Houston and other 60 Precinct personnel with a suspect in custody. He did not see Respondent (Tr. 137-42, 146, 154).

Fastaia testified that he and his co-delegate, Cetto, went to West 24th Street and Mermaid, the last place Houston had seen Respondent, to "see if he was all right," in light of the fact that he had been separated from his partner. Respondent gave "his side of the story." Respondent stated that several youths had been fighting. One group went north on

West 24th and the other went south. Houston "started to take off after the group" going north. Respondent felt that they should not have chased them (Tr. 138, 142-43, 147-48, 152-53, 155).

Fastaia told Respondent that in his opinion, "if he saw" Houston running, he should have followed. Respondent answered that with 12 to 13 years on the job, "I know when better to run or not." The delegates told Respondent that even "if it wasn't something you run after, his partner did run, that you should follow" (Tr. 143-45).

Fastaia, like Cetto, agreed that the officers were asking Respondent these questions in their capacity as union representative. It had not been their plan to report back to anyone (Tr. 147-48).

INSPECTOR WILLIAM TAYLOR was the commanding officer of the 60 Precinct during the time in question. He started this role in July 2015 (Tr. 170-71).

Taylor testified that when Respondent was administratively transferred, i.e., for disciplinary reasons, to the 60 Precinct, he told Respondent he should look at the move as an opportunity for a fresh start. Taylor asserted that he was unaware of Respondent's disciplinary details. He did not look at Respondent's file because he was on full-duty status and "I'll take all the help I can get" (Tr. 172-74).

Taylor did, however, contact one of Respondent's former supervisors after the command began having problems with him in the fall of 2017. Several sergeants told Taylor that "pretty much the - every officer on the platoon" did not want to work with Respondent, and that Respondent did not want to perform work. Taylor left the matter to the sergeants to resolve. He might have spoken with Respondent's delegates about it as well (Tr. 175-77, 197).

Around the time that Taylor arrived at the precinct, he set up a permanent post at the corner of West 24th Street and Mermaid Avenue. This was in response to a lot of shootings at that location. The number of shootings had gone way down since the post was started. The officers assigned to the post did not have to generate activity, they only had to act as a police presence. In explaining his assignment of Respondent to this post, Taylor testified:

He was – he came there. . . . [F]rom what I was told, he had a very bad attitude, and we were the No. 1 precinct [in 2016] in crime reduction. Morale was very high, and I wasn't going to let any one individual ruin that. So to that corner he went, and I really didn't care if he ever made an arrest or wrote a summons or did anything other than just stand there.

(Tr. 178-79, 181, 184, 197).

The post required face-to-face relief for tour changes and meals. Before Respondent arrived at the command, the relieving tour's officers were taking their time getting to the post. This meant that the officers already there were coming back late from their tour, causing overtime costs to rise. Taylor instituted a policy of having the patrol supervisor, on the tour that was ending, drive the next tour's officers to the post to relieve the officers (Tr. 197-99).

According to Taylor, sometime in October 2017, when Respondent became steady-assigned to the post, he started a "routine" of going to the bathroom every day after roll call. When the patrol supervisor told Respondent to just go when he arrived at the post, Respondent responded, "It's my God given right to use the bathroom and I'm going to use the bathroom" (Tr. 199-200).

On one particular occasion, the patrol supervisor notified Taylor that Respondent had refused to go on post and was insisting on his right to go to the bathroom. Taylor asserted that he was concerned there could be a "health issue." He and the sergeant went

to the third-floor locker room, where they found Respondent "relaxing" with his gun belt, uniform shirt and vest off. He was not in the bathroom. Taylor ordered him to get dressed and report to his post. Respondent replied that Taylor, who is white, was a racist and was doing this because Respondent was black. A stare-down ensued, and ended upon Taylor telling Respondent that he had 60 seconds to get dressed and go to post or he would be suspended. Respondent slowly followed Taylor's orders. From that day forward, Taylor ordered the sergeants performing roll call to stand by the stairs to ensure Respondent only was allowed to use the downstairs bathroom. After that, "I guess the jig was up," and Respondent started going straight to post after roll call (Tr. 200-01, 203-05, 210-11).

Respondent received a schedule B command discipline as a result of the incident. Taylor reported Respondent's accusation to the Office of Equal Employment Opportunity, as Respondent had demanded. EEO never interviewed Taylor about the matter and he received no discipline or retraining (Tr. 200-03).

When Taylor was notified about the incident in question at this trial, he was off duty watching a Brooklyn Nets game at Barclays Center. Partially for the incident, and partially because the person with whom he was watching the game had parked at the 60 Precinct stationhouse, Taylor came into the precinct. He was told, by a police officer whose identity he did not recall, that Houston had engaged in a foot pursuit but Respondent remained on the post. Several officers were upset about this, including the delegates and Houston. Taylor was aware that Respondent made a radio transmission for backup (Tr. 182-83, 185-86, 189-91, 193-94, 206-07).

This was the first time that Taylor, as commanding officer, had come in off-duty for a situation like this, but he stated that it was the first time someone's duty status was

possibly going to be changed due to an incident. Taylor agreed that BSIU would be handling the investigation and they did not necessarily need his help (Tr. 183-85, 187, 205-06).

Taylor testified that there was an Argus Departmental surveillance camera covering the corner. The camera was located approximately on Mermaid Avenue between West 24th and 25th Streets, that is, somewhat west of the intersection. The camera had a vantage point from the southwest corner, showing up to the middle of the block going north on West 24th Street. Taylor viewed footage from the camera as part of the investigation, prior to Respondent's official interview. The video showed that both Respondent and Houston dispersed the crowd, and then Respondent returned to the corner after "things dissipate." Houston then engaged in a pursuit. The video also showed Respondent facing toward Houston, in a position to see Houston run (Tr. 182, 187-91, 207-10).

After the interview, Respondent's duty status was changed to modified, for failing to assist Houston (Tr.189-90, 205).

POLICE OFFICER ENDRI DOMI was operating the response auto within the confines of the 60 Precinct on the third platoon of December 22, 2017. Around 2100 hours, Domi was heading toward West 24th Street and Mermaid Avenue to relieve Respondent and Houston for meal at their foot post. Domi had worked this post with Respondent before. It was set up because the corner was a shooting-prone location. As Domi drove, Respondent transmitted a call for additional officers over the radio (Tr. 48-50, 69-70, 76-77).

When Domi arrived, he observed several officers, including Houston, and a suspect, between Mermaid and Neptune Avenues. Respondent was not there. Domi next went to

the location of the foot post, where he saw Respondent with Cetto and Fastaia. There still was a crowd on the corner when Domi arrived (Tr. 50-51, 67, 75-76).

Domi testified he heard Fastaia tell Respondent that he should have gone to "the 10-13" in order "to back up his partner." Domi was unaware of any call for assistance from Houston, however. Respondent told Fastaia that he did not have to do so. Domi was about three car lengths, or 25 to 30 feet, away from the three officers' conversation. They were not yelling (Tr. 51-52, 54, 56-58, 77-78).

Domi conceded that during his official Department interview at 0147 hours on December 23, 2017, he told investigators that he observed Respondent speaking to the delegates but did not hear what was being said and did not approach until they were done. Furthermore, when asked at the interview, "While you were at the location, did anybody make mention to you or were you informed of the reason why Officer Williams may not have involved himself in this pursuit?," Domi answered, "No, not that I know of" (Tr. 54-56, 58-59, 63).

Domi admitted that a break was taken during the interview and he was allowed to speak to his union delegate. After the break, Domi agreed, he "had a much more detailed answer." He contended, "I had the . . . that was my first time. . . . I felt a lot of pressure with all the bosses in there. . . . I wanted to just clarify what - I had brain freeze. I did not know how to respond to . . . those questions and I needed a break." Domi conceded that he changed his answer after his commanding officer, Taylor, told him he had "some independent knowledge" Domi was "standing right there and . . . heard the entire conversation." Domi then "opened up more of myself of what I heard over there" and told

the investigators that he heard part of the delegates/Respondent conversation (Tr. 59-60, 62-64).

Domi denied at trial that he changed his answer because of what Taylor said. Rather, he asserted that it was "[b]ecause during the first part I . . . felt like if . . . I was not sure of what I heard in there and I did not want to get anybody of these officers in trouble," including himself (Tr. 66-67).

Fastaia and Cetto left the location. When Domi approached Respondent to turn over the keys to the response auto, Respondent asked him "[h]ow he sounded on the radio when he called for help. Did it sound as an emergency?" Domi understood Respondent to mean that the call for assistance "was not a big deal, a big emergency" requiring such a huge police response, even units from other commands. Respondent also told Domi that Houston "left him from the post," not that Respondent left Houston (Tr. 52-53, 64, 78-79).

LIEUTENANT RICHARD TULLY of BSIU took part in the investigation of the incident. He interviewed several members of the service, including Respondent. The incident took place between approximately 2110 and 2130 hours on December 22, 2017. Respondent's interview took place at approximately 0100 hours on December 23, 2017. This was about three hours and 50 minutes after the initial incident itself. Tully agreed that Taylor told him Respondent had been having problems at the command. Taylor told Tully that he wanted Respondent investigated for failing to join in the pursuit. Taylor also said that he had learned what happened from Respondent's delegates (Tr. 12-14, 31-32, 38, 44-45).

Tully affirmed that both Respondent and Houston had been at the scene. Houston told Tully in his interview that Respondent "really wasn't a part of that conversation"

where the woman informed Houston of a possible suspect. Tully learned during the investigation that Respondent was trying to keep the crowd under control (Tr. 33, 37).

Tully testified that it turned out the youth who fled was not wanted. A juvenile report was prepared in regard to disorderly conduct (Tr. 42-44).

Tully testified that Respondent denied knowing at the time of the incident that Houston had chased any suspect. Respondent said that he only learned this later, at the 60 Precinct stationhouse, when his firearm was taken from him. He also stated that he did not recall too much of what he said to his delegates, Fastaia and Cetto, at the scene. In Tully's opinion, Respondent appeared evasive in answering the question about the delegates by stating that he did not remember making certain statements. The delegates had stated in their interviews that when they asked Respondent why he did not pursue, he answered, in sum and substance, "I know when to run and when not to run" (Tr. 17-21, 23-27, 32-33).

Tully denied knowing that the West 24th and Mermaid location was a "punishment post" within the 60 Precinct (Tr. 36).

The **OFFICIAL DEPARTMENT INTERVIEW** of Respondent took place at 0100 hours on December 23, 2017. Tully was the lead investigator. Respondent stated in the interview that he had been assigned to the 60 Precinct since July 2017 and generally worked the third platoon. West 24th Street and Mermaid Avenue was his steady post (Dept. Ex. 1, Respt. interview transcript, pp. 1, 3-4).

Respondent stated that on December 22, 2017, Houston was his partner on the foot post. There was a disorderly crowd involving two groups of perhaps 20 to 30 "[y]oung kids," who looked as though they were about to fight. Respondent transmitted over the radio for "crowd control," bearing in mind "don't get no other cops hurt, it's just kids

running around." Respondent indicated at the interview that more personnel arrived and tried to get the youths to disperse. Respondent and Houston each was trying to disperse different ends of the group. But they ended up going into the street and it became "total chaos" (Ex. 1, pp. 5-11, 14-15, 24-26).

Respondent denied that he saw a pursuit initiated by Houston. He conceded that Houston was not with him the whole time, but asserted he did not know where Houston went. At one point while breaking up the crowd, Respondent looked but did not see him. Respondent did not recall hearing anything transmitted over the radio by Houston. He conceded that he did not go over the air to find out where Houston was. Respondent remained at the corner of West 24th and Mermaid to ensure the youths continued to disperse. The first inkling he had that there was a pursuit and an arrest was when one of his delegates spoke to him at the stationhouse later on. Respondent asserted that he did not recall whether he was aware, while he still was on post, that an arrest had been made (Ex. 1, pp. 8-15, 18-19, 25-28).

Respondent agreed that he had a conversation with his delegates at the scene, "minutes" after he lost sight of Houston. It was not a long period of time. Respondent asserted that he told the delegates the same thing he was expressing at the official interview. At the interview, Respondent first denied, then said he did not recall, making a statement to anyone on scene, including delegates, about why he did not assist Houston in the pursuit. This included whether he stated, in sum and substance, that he had "too much time on the job to get involved in something like that." Respondent agreed that the delegates asked him where his partner was and why they were not together. Respondent answered them that he did not know where his partner was, or that there had been a

pursuit. He told the delegates that he was the first officer to actually take police action (Ex. 1, pp. 15-21, 23, 27).

Respondent insisted that "there was so much going on" and thus he did not contact Houston. He said that "people can have their opinion about me and whatever," but he always backed up the officers with whom he worked, which was something he had to do "if I'm going to do this job and I'm going to suit up." He indicated that he and Houston had no problems as they had been joking around all day while on post. Had Respondent known that someone was being pursued or arrested, he would have helped (Ex. 1, pp. 27-29).

RESPONDENT testified at trial that he was transferred to the 60 Precinct on July 1, 2017, while on full duty. He initially was assigned to patrol. Some issues, however, developed between Respondent and Taylor, the commanding officer. Respondent complained to his union delegates about this. At one point, Respondent made an equal employment opportunity complaint. His relationship with Taylor worsened afterward. Respondent settled a lawsuit for monetary damages against the Department in October 2018. This lawsuit was pending in December 2017 (Tr. 218-19, 225, 227-28, 235-38, 240-43).

Respondent testified concerning his assignment to the foot post at West 24th Street and Mermaid Avenue. He was assigned there with Houston. The corner was a "hot spot" within the precinct and "it's supposed to be a high crime corner." There were New York City Housing Authority developments nearby (Tr. 219-20, 230).

Respondent testified that on December 22, 2017, around 2120 hours, there was a group of at least 30 disorderly youths "crowding the corners." The youths looked as though they were about to fight. Respondent tried to break up the group, which might

actually have consisted of two separate groups from separate areas. But the group got bigger and Respondent and Houston lost control of the crowd. Respondent did not recall seeing any other officers. He went over the radio and called for assistance with crowd control. Houston still was with him on the sidewalk at this point (Tr. 220-23, 231, 238).

When the crowd spilled into the streets, Respondent and Houston both went into the street and continued to attempt to break up the crowd. Respondent observed Houston "up to that point" that more units began arriving, including housing officers. Once the youths saw the additional units, they started dispersing in different directions and the officers were in the midst of it. On direct examination, Respondent testified that it was at this point that Respondent lost sight of Houston. This, Respondent indicated, was not unusual in situations with crowds of youths. He had worked school safety in the past and these situations, especially right after school, were particularly difficult. This was only exacerbated on the date in question because students were heading into Christmas break. Respondent denied telling Houston not to chase someone. The next time he saw Houston was at the stationhouse (Tr. 223-24, 231, 243-44).

Respondent testified that two delegates from his command, Cetto and Fastaia, approached him. They asked him "if I was actually still shooin kids off," and where was his partner? On examination by the Court, Respondent testified that this was the first moment he realized he had lost sight of Houston. Respondent had a good working relationship with Houston, so while he was "definitely concerned" by Houston's possible absence, he was "suspicious" of the delegates. "It was weird to me" and "threw me off. . . . given the current situation with what I was going through" with Taylor. On direct examination, Respondent testified that he told Cetto and Fastaia he was unsure where

Houston was. On cross, he said that he believed he told them Houston was "somewhere within the vicinity where I was." At trial, Respondent denied telling Cetto and Fastaia that he had seen Houston chase a suspect and advised Houston not to do so. He denied telling them that Houston abandoned him (Tr. 224-27, 231-35, 241, 244-45).

Respondent testified that when Fastaia and Cetto approached him, he still was dispersing the crowd. He later was informed that Houston had pursued and arrested someone and was back at the stationhouse. Once there, a sergeant informed him that the commanding officer had directed his gun and shield be removed (Tr. 226-27, 235, 241-42, 245).

Respondent complied with the directive and was officially interviewed at approximately 0100 hours on December 23, 2017. It was "weird again" to Respondent when he saw the two delegates near the command-level supervisors' offices (Tr. 228-30, 238-39).

Analysis

As noted above, Respondent was administratively transferred to the 60 Precinct around July 2017. His new commanding officer, Taylor, told him that he should look at it as a fresh start. There was testimony at trial, however, concerning animosity that developed between Taylor and Respondent. That testimony was neither material nor dispositive of the specific misconduct charge at issue in this trial. Furthermore, the Court finds that Respondent's claims of bias by Taylor were uncorroborated and unsupported by any credible evidence in this record.

On December 22, 2017, Taylor was informed that there was a pursuit and Respondent failed to join in. This set in motion the Brooklyn South Investigation Unit

inquiry, and also led to Taylor viewing the Argus camera. According to Taylor, the video showed Respondent standing by as Houston pursued the suspect.³ Taylor was present for Respondent's official Department interview and questioned him directly and extensively during it.

There was much discussion at trial concerning whether Respondent should have run after the suspect with Houston. The Department did not charge him with failing to do so, however, and the Court has not considered the question on the merits. Rather, the crux of the dispute at trial concerned two answers Respondent gave during his interview. According to the Department, Respondent inaccurately stated that he first knew about a pursuit when one of his delegates spoke to him at the stationhouse afterward.

The Department further alleges that Respondent inaccurately stated he did not recall "the full conversation he had with the delegates at the scene" (Tr. 6). Respondent agreed at the interview that he spoke to them. But Respondent first denied, then said he did not recall, making a statement to anyone on scene, including delegates, about why he did not assist Houston in the pursuit. This included whether he stated, in sum and substance, that he had "too much time on the job to get involved in something like that." Respondent agreed that the delegates asked him where his partner was and why they were not together. Respondent answered them that he did not know where his partner was, or that there had been a pursuit.

³ In contrast to Taylor's testimony, the Advocate stated that the BSIU closing report described the Argus video as having no investigative value (Tr. 163-66). The video was not preserved and could not be presented at trial (conference tr. of Oct. 23, 2018). Accordingly, the Court has not considered Taylor's testimony about the video as direct evidence that Respondent knew Houston had pursued someone. The Court only has considered Taylor's testimony with regard to how the BSIU investigation arose and proceeded.

The Department, however, presented witnesses that contradicted Respondent's interview statements. This included the union delegates, **Cetto** and **Fastaia**. **Cetto** testified that they asked Respondent what had occurred. Respondent answered that while he told Houston not to run, he engaged in a chase anyway. When Fastaia told Respondent "he's gotta stay with his partner," Respondent answered, in sum and substance, "that he had enough time to know when and where he's supposed to run and not run."

Fastaia testified that Respondent said Houston began to "take off after" one group of youths. Respondent felt that they should not have chased them. Fastaia informed Respondent that he should have followed his partner. Respondent answered that with 12 to 13 years on the job, "I know when better to run or not."

Domi, the officer that came to relieve Respondent and Houston for meal, testified he overheard the conversation between Respondent and the delegates. According to Domi, Fastaia told Respondent that he should have backed up his partner. Respondent told Fastaia that he did not have to do so. Later at the scene, outside the delegates' presence, Respondent told Domi that Houston essentially abandoned him on the post.

Domi conceded, however, that during his official Department interview, which took place around the same time as Respondent's, at 0147 hours on December 23, 2017, he first said he observed Respondent speaking to the delegates but could not hear. A break was taken during the interview and he was allowed to speak to a delegate. Additionally, Taylor told Domi at the interview that he had some "independent knowledge" Domi had been present to hear the conversation. Domi then admitted during the interview that he had heard part of the conversation. At trial, he stated that he did not change his answers out of fear of Taylor, but because he did not want to get fellow officers in trouble.

In sum, therefore, the Department witnesses indicated that Respondent conceded knowledge of the pursuit, because his statements to them demonstrated he knew about it. Further, the testimony provided several details about the delegates' conversation with Respondent, including Houston beginning to pursue the suspect, Respondent telling him not to, and explaining to the delegates that he was veteran enough to know that the pursuit was unnecessary. This was inconsistent with Respondent's interview assertion that he did not recall the discussion with the delegates, an assertion inconsistent with the witnesses' fulsome and stark recollection of the discussion, which had occurred a mere few hours prior.

The Court credits the trial testimony of the Department witnesses. One of the main responsibilities of a union delegate is to protect his constituents with regard to any problems that develop with management or supervisors. In that vein, it is unusual for delegates to provide any evidence unfavorable to an accused member of the service of their same rank, especially when that member is one of the people they served directly as delegate. The fact that the testimony of Cetto and Fastaia instead was unfavorable to Respondent imbues it with credibility. Cf. Case No. 2013-10385, p. 5 (June 19, 2015) (crediting non-party testimony of subway musician that Respondent had been summoning during incident with complainant; musician was similarly situated in age and background to complainant, but gave testimony favorable to Respondent).

Cetto in particular was a visibly reluctant witness. He agreed with the Court that he did not want to testify. The Court based this assessment on Cetto's body language. Cetto "did not have a happy look on his face," to say the least. He was looking down and not making eye contact; he actually had his hand in front of his mouth as though trying to hold

in damaging information. In the Court's view, "he did not want to be here" (Tr. 132, 135). The fact that he did testify under his obligation as a Department member and gave testimony unfavorable to Respondent makes that testimony more credible.

Furthermore, there was no evidence of any animus held by the delegates toward Respondent. Taylor, the commanding officer, testified that he spoke to either Cetto or Fastaia about the problems Respondent was having with regard to not being a diligent worker (Tr. 177). As noted above, this is a delegate's job: to work out problems between supervisors and lower-ranking members. Fastaia and Cetto both testified that when they went to speak to Respondent on the night of the December 2017 incident, they did so solely in their capacity as union representatives. They were not investigating the case for any supervisors. Fastaia, who according to Cetto did most of the talking that night, indicated at trial that he was somewhat taken aback by Respondent's answers about not being required to pursue anyone. Thus, if Cetto and Fastaia were upset at the situation, as Taylor indicated in his testimony, it only was because of Respondent's statements. There was no preexisting animus or dislike.

Domi, who came to relieve Respondent and Houston, similarly was sympathetic to Respondent. He testified one reason he said at his official interview that he was not aware of why Respondent did not join in the pursuit was that he did not want to get anyone in trouble. In other words, he had no animus against Respondent. Notably, Domi's account – that Fastaia told Respondent he needed to stay with his partner, and Respondent answering that he did not have to – was consistent with and corroborated the testimony of the delegates. In any event, even putting aside Domi's disputed recollection of the delegate/Respondent conversation, Domi also testified that Respondent told him Houston

had abandoned him, not the other way around. This statement indicated that Respondent knew Houston had engaged in a pursuit.

Respondent, in contrast, was an interested witness. His testimony was at times tangential and rambling. There were notable contradictions in his account. For example, on direct examination, Respondent testified it was when the youths started dispersing upon the arrival of other officers that he first lost sight of Houston. But later, Respondent testified that he first realized he had lost sight when Cetto and Fastaia asked him where Houston was. Furthermore, on direct, Respondent testified that he told the delegates he was unsure where Houston was. But on cross, he said that he believed he told them Houston was somewhere close to Respondent. These contradictions severely detracted from his credibility.

In sum, the Department proved by a preponderance of the credible evidence that Respondent gave inaccurate, incomplete or misleading statements at his official Department interview. As such, he is found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on January 10, 2005. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. The Department recommended a penalty of the forfeiture of 25 vacation days.

That recommendation is overly generous and entirely insufficient in this matter. Respondent has been found guilty of giving inaccurate statements during his official

interview, a charge that can, under the terms of Patrol Guide § 203-08, lead to termination. But this refusal to provide straightforward and truthful answers did not arise in isolation. As Respondent's prior disciplinary history shows, it is part of a pattern of resistance to Department guidelines and paramilitary structures.

Previously, in *Case No. 2015-14387* (May 22, 2017), Respondent was found guilty of discourtesy toward the Queens North duty inspector. The deputy inspector involved was, like the investigators in the instant case, investigating other misconduct. Respondent had been involved in a dispute with the Queens North duty captain over Respondent's alleged use of his personal cell phone while on duty as precinct stationhouse security. Respondent had alleged that the captain, who was white, called him a racial slur. One of the specifications charged in the disciplinary trial was whether Respondent had disobeyed the captain's order to cease using his phone. Respondent was evasive in answering the duty inspector's questions about the location of his firearms, was chewing gum and seemed dismissive of the process in general, and tried to "stare down" the deputy inspector. Respondent received a penalty of the forfeiture of 12 suspension days already served.

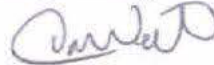
The Police Commissioner approved the disciplinary decision in May 2017 and Respondent was transferred to the 60 Precinct in July 2017. There, he was given an opportunity for a fresh start. It did not work out that way. This Court finds that Respondent engaged in a flagrant display of untruthfulness both during his interview and at trial. In particular, Respondent incredibly claimed that he did not recall making certain statements during a very brief conversation only a few hours prior. Respondent demonstrated that he lacks a sense of the gravity of making false statements and how that undermines the investigatory process.

Department precedent supports the imposition of the forfeiture of a significant number of vacation days along with dismissal probation. See Case No. 2013-10370 (Jan. 29, 2015) (nine-year police officer received penalty of 10 vacation days, 30 pre-trial suspension days, and one-year dismissal probation for relatively minor misconduct of failing to remain on post until properly relieved, making improper entries in Omega post log, facial hair, and failing to maintain activity log, but compounded by false and misleading statements during official interview and refusing to clarify and answer questions during interview); Case No. 2010-2270 (Feb. 8, 2013) (19-year officer forfeited 30 vacation days, 30 suspension days, and received one year probation for refusing to cooperate with Port Authority police investigation, and impeding an NYPD investigation, by providing vague and non-responsive answers to certain questions posed to him at his official NYPD interview; Police Commissioner, in upgrading penalty to include suspension days and probation, noted that officer's "uncooperative behavior, combined with his vague and non-responsive answers during a PG 206-13 hearing were outrageous"), aff'd sub nom. Matter of Vincent v. Kelly, 126 A.D.3d 414 (1st Dept. 2015) (findings of fact affirmed and penalty not shocking to Court's sense of fairness).

In sum, Respondent has demonstrated an inability to conform to Department guidelines, plus untruthfulness when confronted with his misconduct. It is imperative that his future conduct be monitored. Accordingly, the tribunal recommends that Respondent be *DISMISSED* from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Administrative Code § 14-115 (d), during which time he is to remain on the force at the Police Commissioner's discretion and may be

terminated at any time without further proceedings. The Court further recommends that Respondent forfeit 30 vacation days.

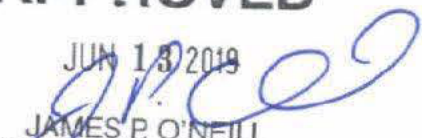
Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials

APPROVED

JUN 13 2019



JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER WOODY WILLIAMS
TAX REGISTRY NO. 937743
DISCIPLINARY CASE NO. 2018-18569

Respondent was appointed to the Department on January 10, 2005. For his last three annual performance evaluations, he received a 3.0 overall rating of "Competent" in 2015 and 2016, and a 3.5 overall rating of "Highly Competent/Competent" in 2014. He has received two medals for Excellent Police Duty.

[REDACTED]

In 2017, Respondent forfeited 12 suspension days without pay for: (i) behaving discourteously toward a supervisor; (ii) failing to maintain his Activity Log; and (iii) being unshaven while in uniform. In connection with that matter, Respondent was placed on Level 1 Discipline Monitoring. This monitoring remains ongoing.

For your consideration.

David S. Weisel
Assistant Deputy Commissioner Trials